

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Filed: _____

ALPHA DIALLO,

INDEX NO. _____

Plaintiff,

Plaintiff designates New
York County as the place of
trial.

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. SCOTT SEVERINO (Shield #14957) and
P.O. KEITH LEE (Shield #24051),

S U M M O N S

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of
this summons is complete if this summons is not personally delivered to you within the State
of New York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
June 30, 2015

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, Room 300
New York, New York 10038

P.O. SCOTT SEVERINO
32nd Precinct
250 West 135 Street
New York, New York 10030

P.O. KEITH LEE
32nd Precinct
250 West 135 Street
New York, New York 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

INDEX NO.

ALPHA DIALLO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. SCOTT SEVERINO (Shield #14957) and
P.O. KEITH LEE (Shield #24051),

Defendants.

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. At all times hereinafter mentioned, plaintiff was a resident of the County of New York, City and State of New York.
2. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK (hereinafter "CITY") was and still is a domestic municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
3. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") was and still is a domestic municipal agency duly organized and existing under and by virtue of the Laws of the State of New York.
4. On or about June 30, 2012, the defendant P.O. SCOTT SEVERINO (Shield #14957) was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer.
5. On or about June 30, 2012, the defendant P.O. KEITH LEE (Shield #24051), was a citizen of the United States and the State of New York and was employed by the NYPD as a

police officer.

6. Defendants P.O. SCOTT SEVERINO (Shield #14957) and P.O. KEITH LEE (Shield #24051) are being sued in both their individual and official capacities.

7. At all times hereinafter mentioned, the defendant NYPD was and is a department or agency of defendant CITY that was and is responsible for the appointment, training, supervision, promotion and discipline of the police officers of the NYPD, including the individually named defendants herein.

8. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

9. At all times hereinafter mentioned, the defendants CITY and NYPD employed the warrant officers, police officers, jailers, wardens, magistrates, court attendants, clerks, district attorney and his assistants, drivers, and others hereinafter mentioned in this complaint.

10. Upon information and belief, the defendants CITY and NYPD owned the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

11. Upon information and belief, the defendants CITY and NYPD maintained the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

12. Upon information and belief, the defendants CITY and NYPD controlled the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

AS AND FOR A FIRST CAUSE OF ACTION

13. Plaintiff ALPHA DIALLO repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 12, inclusively with the same force and effect as if set for the fully and at length set forth herein.

14. Plaintiff was arrested, held in custody, restrained of his liberty and forced to spend days and weeks incarcerated.

15. This arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

16. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

17. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

18. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty caused him great humiliation and as a result of which he has been damaged.

19. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

20. The charges against plaintiff were wholly dismissed.

21. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; his reputation and character were injured; his earning power permanently impaired.

22. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SECOND CAUSE OF ACTION

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 21, inclusively with the same force and effect as if set for the fully and at length set forth herein.

24. Defendants negligently and/or intentionally failed to arraign plaintiff promptly following his arrest as required by New York State and Federal laws, rules, regulations and statutes.

25. Said failure to promptly arraign plaintiff caused his arrest to be void ab initio.

26. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, economic damages, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

27. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A THIRD CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 26, inclusively with the same force and effect as if set for the fully and at length set forth herein.

29. That Defendants, with malicious intent, arrested ALPHA DIALLO and initiated a criminal proceeding despite the knowledge that ALPHA DIALLO had committed no crime.

30. That all charges against ALPHA DIALLO were terminated in his favor.

31. That there was no probable cause for the arrest and criminal proceeding.

32. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of ALPHA DIALLO's rights, deprived ALPHA DIALLO of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

33. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, ALPHA DIALLO was maliciously prosecuted despite the fact that he had committed no violation of the law.

34. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

35. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

36. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights

of arrestees and were the cause of the violations of ALPHA DIALLO's rights alleged herein.

37. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

38. That upon information and belief, in 2006, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

39. That by reason of the foregoing, ALPHA DIALLO suffered physical and psychological injuries, traumatic stress, post traumatic stress disorder, mental anguish, economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

40. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FOURTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 40, inclusively with the same force and effect as if set forth fully and at length set forth herein.

42. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

43. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations,

customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

44. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

45. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

46. As a result of the conduct of Defendants, Plaintiff was and continues to be deprived of his privacy and liberty, has been adversely affected in his employment and in his ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for his physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

47. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

48. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, ALPHA DIALLO respectfully requests that judgment be entered:

1. Awarding ALPHA DIALLO compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding ALPHA DIALLO punitive damages in an amount to be determined by a jury;
3. Awarding ALPHA DIALLO interest from June 30, 2012;

4. Awarding ALPHA DIALLO reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
June 30, 2015


By: **Roberta D. Asher**
ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ALPHA DIALLO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. SCOTT SEVERINO (Shield #14957) and
P.O. KEITH LEE (Shield #24051),

Defendants.

INDEX NO.

**ATTORNEY'S
VERIFICATION**

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
June 30, 2015


ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ALPHA DIALLO,

Plaintiff,

-against-

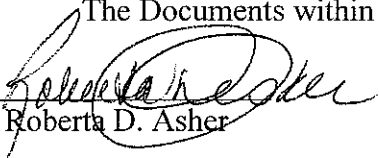
THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. SCOTT
SEVERINO (Shield #14957) and P.O. KEITH LEE (Shield #24051),

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By:


Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2015 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2015 , at
9:30 A.M.

Dated: